

Mohd. Ahmad v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 25 March 2021 · WRIT - C No. 9691 of 2021 · **Writ disposed; final assessment and recovery made subject to a fresh decision on objections.**

HEADNOTE

In a theft assessment, Clause 8.1(a) and (b) of the Electricity Supply Code, 2005 require that the provisional assessment notice and show-cause be sent giving the consumer time to reply; objections must be decided and a personal hearing accorded if sought. Where the final assessment of 14 September 2020 preceded service of the 21 August 2020 provisional notice, the Court, without entering the merits of theft, granted liberty to file a fresh objection and directed a reasoned speaking order, making the final assessment and recovery notice subject to that decision.

FACTUAL SUMMARY

Mohd. Ahmad challenged PuVVNL's theft final assessment of 14 September 2020 and recovery notices of 11 December 2020 and 8 January 2021. The 21 August 2020 provisional assessment was dispatched on 10 September and served on 16 September, after the final order. His 3 October 2020 objection was not considered. The licensee's instructions said the final order was passed for want of objection and did not show dispatch of the notice. He also disputed the inspection report and the fact of theft.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

theft-assessment-procedure

HOLDING

In a case of theft of electricity, Clause 8.1(a) and (b) of the Electricity Supply Code, 2005 require that the provisional assessment notice along with the show-cause notice be sent to the consumer giving time to file a reply; on objections, the authorised officer must decide them and, if personal hearing is sought, accord it. Where that procedure was not followed before the final assessment, the Court, without entering the merits, granted liberty to file a fresh objection to the provisional assessment and directed a reasoned speaking order within four weeks, making the final assessment and recovery notice subject to that fresh decision. ¶ 1

PRINCIPLE TAGS

clause-8.1b-theft-notice-natural-justice The Court held that in theft cases the provisional assessment and show-cause must be sent with time to reply, and that Clause 8.1(a) and (b) had not been followed where the final assessment preceded service of the provisional notice. ¶ 1

clause-8.1b-personal-hearing-mandatory-before-final-assessment The Court stated that if personal hearing is sought by the consumer, the authorised officer must accord it when deciding objections under Clause 8.1(a) and (b). ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — FACTUM OF THEFT AND THE INSPECTION REPORT

The Court expressly did not enter the merits; the challenge to theft and the inspection report was left to the authorised officer on the fresh objection. ¶ 1